

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken– to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.

Department: DCCED

Date: 5/12/2026

Bill Number: SB 143

Short Title (as it appears on BASIS): MUNI SCHOOL BOARD TERMS; CITY COUNCILS

What action do you recommend the Governor take?

Select one.

☐ SIGN ☐ VETO ☒ LWOS

Action Justification – Why do you recommend the above action?

The Division is commenting only on the portion of the bill pertaining to the City Council composition. The DCRA has observed many smaller cities struggle to fill a 7-person city council and support reduction to a minimum of 5 members on a council. The major issues related to having only 3 people on a council include meeting a quorum, not having meetings because of vacancies, and conflicts that can arise when such a small number of members are acting on behalf of an entire community. We support allowing small cities to have an option of lowering the number of city councilmembers, but do not support only 3 members. Therefore, we recommend not signing the bill, but allowing it to become law without signature.

What does this Bill do?

In addition to providing a succinct bill summary, please also consider the following: Why is this bill needed? How does it specifically change department programs? What is the anticipated impact on the public, the private sector? Does this bill align with the priorities of Governor Dunleavy?

SB 143 amends Alaska Statutes Title 29 to provide municipalities with greater flexibility over local governance structures, particularly regarding school board terms and the composition of city councils in smaller second-class cities. The bill authorizes municipal governing bodies to change the terms of office for municipal school board members through ordinances that must be

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approved by local voters, rather than being limited to the current default three-year terms established in statute. The bill also revises statutes governing city council composition. Under the proposed changes, first class cities would continue to have six-member councils, and second-class cities with populations greater than 1,000 would continue to have seven-member councils. However, second-class cities with populations of 1,000 or fewer would gain authority to establish council sizes by ordinance, provided the council contains at least three and no more than seven members. In addition, the legislation preserves existing authority for first- and second-class cities to adopt non-at-large election systems for council members. The bill would take effect immediately upon enactment.

Detailed Sectional Analysis

The full sectional analysis of the bill should be completed by the lead agency. Other departments should include an analysis for sections of the bill affecting their agencies.

Section 1

- Amends AS 14.12.050 by adding a new subsection (d). This subsection authorizes the governing body of a municipality to alter the terms of office for municipal school board members by ordinance. Under existing law, school board terms are generally fixed by statute. This amendment creates local discretion to modify those term lengths. The provision does not itself specify the length of alternative terms, leaving that determination to municipal ordinance authority.

Section 2

- Amends AS 29.20.130, which governs the composition of city councils. The section retains the existing statutory structure requiring first class cities to maintain six-member councils elected at large and requiring second class cities with populations greater than 1,000 to maintain seven-member councils elected at large. The amendment adds a new rule for second class cities with populations of 1,000 or fewer. Those smaller municipalities would be permitted to establish, by ordinance, a council consisting of not fewer than three members and not more than seven members. This section therefore creates flexibility for smaller second-class cities to tailor council size to local circumstances while preserving statutory minimum and maximum limits. The section also preserves existing authority allowing first and second-class cities to adopt district-based or mixed election systems instead of exclusively at-large elections.

Section 3

- Amends AS 29.20.300(a), which governs municipal school boards. The amendment updates the existing language to clarify that the default rule requiring school board members to serve three-year terms applies except as otherwise provided under subsections (b) or the newly created subsection (c). This amendment functions as a conforming change to accommodate the substantive authority created in Section 4. The section preserves existing provisions requiring school board members to be elected at regular elections and elected at large unless voters approve another method of election.

Section 4

- Adds a new subsection (c) to AS 29.20.300. This subsection authorizes a municipality's

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governing body to alter school board member terms of office through an ordinance approved by the voters. Unlike the original introduced version of the bill, which allowed municipalities to act solely by ordinance, this committee substitute requires direct voter approval before modified term lengths may take effect. The section therefore combines local legislative authority with a local referendum requirement.

Section 5

- Establishes an immediate effective date under AS 01.10.070(c). If enacted, the bill would become effective immediately upon signature by the governor or otherwise become law.

Companion or Similar Bills

Please note companion legislation, the sponsor of the companion legislation, and identify any “rider” bills or provisions from other legislation that was included in this final bill. Please include the name of the sponsor of the “rider bill” or provision. If it was added as an amendment in a committee – please indicate the name of the legislator that sponsored the amendment.

N/A

Support/Opposition of the Bill

Please identify names, organizations, titles, and phones numbers of those who testified in support or in opposition of this bill.

Support for the Bill:

Lon Garrison, Executive Director, Association of Alaska School Boards (AASB)

Bill Signing ceremony suggestions (if applicable)

Please provide information for consideration for a bill signing ceremony. Information that is helpful includes: a specific conference, event, venue, date, and the names and contact information of stakeholders who should be considered for an invitation to the bill signing ceremony.

N/A

Commissioner’s Signature:

DocuSigned by:

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Date: 5/26/2026

I have reviewed the above information and provided it to the Governor’s Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.

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